

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KATHERINE PARKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE SALVATORE
RIZZO, Shield No. 3938, SERGEANT ROGER JASMIN,
Shield No. 3085, and POLICE OFFICERS JOHN DOES #s
1-4 (names and numbers of whom are unknown at present),

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 13, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE SALVATORE RIZZO, Shield No. 3938, Criminal Intelligence Section
SERGEANT ROGER JASMIN, Shield No. 3085, Joint Terrorism Task Force,

SUPREME COURT OF THE STATE OF NEW YORK
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff KATHERINE PARKER, by her attorneys, Jacobs & Hazan, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on November 13, 2018, at approximately 4:00 pm plaintiff was lawfully inside of her apartment located at 1410 New York Avenue, Apt. 5C, Brooklyn, New York 11210 when the individually named defendants knocked on the front door of her apartment and ordered plaintiff to come with them to the precinct. The officers unlawfully handcuffed and falsely arrested plaintiff without probable cause or any legal justification. Thereafter, defendants transported plaintiff to the 67th Precinct against her will whereat she was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. After she was detained at the 67th Precinct for many hours, defendants issued plaintiff a Desk Appearance Ticket charging her with crimes she did not commit and that the officers lacked probable cause to accuse her of committing. Thereafter, plaintiff was released from custody at the 67th Precinct. The defendants also maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. Defendants initiated a criminal prosecution against plaintiff without probable cause and provided false, misleading, and incomplete allegations about plaintiff's conduct to the Kings County District Attorney's Office to support and initiate a criminal prosecution against plaintiff. Plaintiff was arraigned in Kings County Criminal Court on February 6, 2019 and charged with crimes she

did not commit and that defendants lacked probable cause to accuse her of committing. Plaintiff was released from custody on her own recognizance at arraignment. Plaintiff was required to appear in Criminal Court on approximately 3 occasions before the DA's Office affirmatively moved to dismiss and seal all charges brought against plaintiff and all charges were dismissed and sealed in their entirety on April 3, 2019. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff KATHERINE PARKER is a resident of the state of New York.

3. Defendant DETECTIVE SALVATORE RIZZO, SHIELD NO. 3938, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE SALVATORE RIZZO, SHIELD NO. 3938, was at all times relevant herein, assigned to the 67th Precinct and is currently assigned to the Criminal Intelligence Section.

5. Defendant DETECTIVE SALVATORE RIZZO, SHIELD NO. 3938, is being sued in his individual and official capacity.

6. Defendant SERGEANT ROGER JASMIN, Shield No. 3085, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT ROGER JASMIN, Shield No. 3085, is and was at all times relevant herein, assigned to the 67th Precinct and is currently assigned to the Joint Terrorism Task Force.

8. Defendant SERGEANT ROGER JASMIN, Shield No. 3085 is being sued in his individual and official capacity.

9. Defendant New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. New York City Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On or about November 13, 2018, at approximately 4:00 pm plaintiff was lawfully inside of her apartment located at 1410 New York Avenue, Apt. 5C, Brooklyn, New York 11210 when the individually named defendants knocked on the front door of her apartment and ordered plaintiff to come with them to the precinct.

16. Plaintiff was about to get into the shower when the defendants knocked on the front door of her apartment, and she was not wearing any clothing at the time,

17. Plaintiff covered her body with a jacket when she answered the door for defendants.

18. When plaintiff answered the door for defendants she was not wearing anything underneath the jacket, and she was not wearing any pants, underwear, shirts, socks, or shoes.

19. When plaintiff answered the door for the defendants, the defendants immediately and unlawfully handcuffed and falsely arrested plaintiff, without probable cause or any legal justification to arrest plaintiff.

20. The defendants advised plaintiff that they were taking her to the 67th Precinct, but they would not tell plaintiff why they were arresting her and taking her to the 67th Precinct.

21. Since plaintiff was only wearing a jacket she asked the defendants if she could put some clothing on before she left her home, but the defendant police officers refused to allow plaintiff to put any additional clothing on.

22. Consequently, plaintiff was not wearing any clothing other than a jacket when defendants removed her from her apartment and transported plaintiff to the 67th Precinct against her will.

23. It was cold outside, and plaintiff was very cold when the defendants took her outside because she was not wearing any clothing, except for a jacket.

24. Plaintiff felt as if the defendant police officers essentially removed her from her home and transported her to the precinct without any clothes on and that made her feel sexually violated by the defendants and caused plaintiff to suffer extreme emotional distress.

25. The officers unlawfully handcuffed and falsely arrested plaintiff without probable cause or any legal justification.

26. Thereafter, defendants transported plaintiff to the 67th Precinct against her will whereat she was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

27. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess an objective factual basis to believe plaintiff committed a crime or violated the law.

28. After she was detained at the 67th Precinct for many hours without being told why she was arrested, the defendants issued plaintiff a Desk Appearance Ticket charging her with crimes she did not commit and that the officers lacked probable cause to accuse her of committing.

29. Plaintiff suffered from a panic attack while she was detained at the 67th Precinct because she was frightened, did not know or understand why she was arrested, and had never experienced anything like that before.

30. Plaintiff was released from custody at the 67th Precinct after the defendants issued her the Desk Appearance Ticket and after plaintiff was unlawfully detained for approximately 24 hours.

31. When plaintiff was released from the 67th Precinct she had no money, was still only wearing a jacket, and was forced to walk home from the precinct in the extremely cold temperature and she was not wearing any clothing, except for a jacket.

32. The walk home was approximately a 2 mile walk and it took plaintiff 20 minutes to walk home from the 67th Precinct after she was released from custody.

33. Plaintiff suffered from additional anxiety and emotional distress from the experience of walking home in the freezing cold when she was not wearing any clothes, except a jacket.

34. The defendants falsely and maliciously accused plaintiff of stealing a package from one of her neighbors that lived in her apartment building.

35. The officers lacked an objective factual basis to accuse plaintiff of stealing a package from a neighbor.

36. Importantly, at no time relevant herein did the neighbor ever accuse plaintiff of stealing a package that belonged to him,

37. The defendants also maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial.

38. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

39. Defendants initiated a criminal prosecution against plaintiff without probable cause and provided false, misleading, and incomplete allegations about plaintiff's conduct to the Kings County District Attorney's Office to support and initiate a criminal prosecution against plaintiff.

40. Plaintiff was arraigned in in Kings County Criminal Court on February 6, 2019 and charged with crimes she did not commit and that defendants lacked probable cause to accuse her of committing, including Petit Larceny (PL 155.25) and Criminal Possession of Stolen Property in the Fifth Degree (PL 165.40).

41. Plaintiff was released from custody on her own recognizance at arraignment.

42. Plaintiff was required to appear in Criminal Court on approximately 3 occasions before the DA's Office affirmatively moved to dismiss and seal all charges brought against plaintiff and all charges were dismissed, sealed, and terminated in plaintiff's favor in their entirety on April 3, 2019.

43. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

44. The officers unlawfully searched plaintiff without probable cause or any legal basis to search plaintiff.

45. The criminal prosecution against plaintiff in this case was initiated based upon the defendant officers' false, misleading, and incomplete allegations against plaintiff.

46. All of the charges brought against plaintiff were based upon defendants' fabricated, misleading and incomplete allegations against plaintiff.

47. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess and objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

48. The defendants denied plaintiff the right to due process/ right to a fair trial and initiated a criminal prosecution against plaintiff without probable cause.

49. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

50. The individually named defendant police officers have significant histories of being disciplined by the NYPD and having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public.

51. Numerous complaints and lawsuits have been filed against defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

52. Even on the occasions where the NYPD determined that defendants engaged in police misconduct, the NYPD disciplined defendants in a manner that was insufficient to address the misconduct engaged in by defendants.

53. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

54. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

55. Given defendants histories of engaging in serious police misconduct toward members of the public, defendants should not have been patrolling the streets of New York

and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

56. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

57. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

58. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

60. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

65. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The illegal approach, pursuit, stop and search inside plaintiff's jacket, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

67. Defendants lacked probable cause to search plaintiff.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

71. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

73. Defendants commenced and continued a criminal proceeding against plaintiff.

74. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

75. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

76. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Denial of Due Process and the Right to Fair Trial

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 77 with the same force and effect as if fully set forth herein.

79. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

80. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

81. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

82. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

83. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, anxiety, and deprivation of her constitutional rights.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

86. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

88. Defendants failed to intervene to prevent the unlawful conduct described herein.

89. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Plaintiff was unlawfully searched, falsely arrested, maliciously prosecuted, denied the right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

93. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally search, and falsely arrest, fabricate evidence, maliciously prosecute, and deny members of the public the right to due process without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

94. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

95. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful search, false arrest, and false imprisonment, malicious prosecution, and denial of due process because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, falsely arrest, maliciously prosecute, and deny due process to members of the public when there is no factual basis to suspect the individual has committed a crime.

96. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

97. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

98. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, falsely arrest, maliciously prosecute, and deny due process to individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests and prosecutions without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

99. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

100. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and

sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

101. The City of New York has acted with deliberate indifference to the Fourth, Fifth, and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

102. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

103. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Katherine Parker demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 13, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 13, 2021

/s/
DAVID M. HAZAN